

Dadu Ram Sonker vs State Of Chhattisgarh on 19 July, 2023

Bench: Ramesh Sinha, Rajani Dubey

Neutral Citation
2023:CGHC:18101-DB

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR
WPIL No. 33 of 2019

Dadu Ram Sonker S/o Paras Ram Sonker Aged About 50 Years R/o Ward
No. 28 Lakholi District Rajnandgaon, Chhattisgarh

---- Petition

Versus

1. State Of Chhattisgarh Through The Chief Secretary, New Mantralaya, Raipur Chhattisgarh.
2. Collector, Raipur, District Raipur Chhattisgarh.
3. Commissioner Municipal Corporation Raipur Chhattisgarh.
4. Superintendent Of Police Raipur, District Raipur Chhattisgarh.
5. Arya Samj Temple Through Shri, Daya Ram Verma, Mantri, Baijanath Para, Raipur Districit Raipur Chhattisgarh.

---- Respondents

(Cause Title taken from Case Information System) For Petitioner : Mr. Anurag Jha, Advocate For Respondent/State : Mr. Gagan Tiwari, Deputy Government Advocate For Respondent No. 3 : Mr. Anumeh Shrivastava, Advocate For Respondent No. 5 : Mr. Arvind Dubey, Advocate Hon'ble Shri Ramesh Sinha, Chief Justice Hon'ble Smt. Rajani Dubey, Judge Order on Board Per Ramesh Sinha, Chief Justice 19/07/2023

1. By this petition, the petitioner seeks for the following reliefs:

"10.1 That, this Hon'ble Court may kindly be pleased to call for entire records of the matter, from the respondents especially respondent no.5.

Neutral Citation 2023:CGHC:18101-DB 10.2 That this Hon'ble Court may kindly be pleased to issue an appropriate writ, directing the respondent authorities to immediately take appropriate enquiry or legal action against the responsible

institution who are cheating the public at large 10.3 That this Hon'ble court be pleased to issue direction for freezing time of the verification of the applicants or call for the status from the concerned police station. Prior to marriage. 10.4 That this Hon'ble court be pleased to issue direction to the state authorities to have an control upon such marriage shops /institutions and keep an record of them.

10.5 That this Hon'ble court be pleased to direct the respondents to examine the provisions/ contents of Section 5 & 7 of the Hindu Marriage Act. A such rules related to marriage act be framed. 10.6 That the institution should not recognized any particular notary and pocket witness in solemnizing the marriages. 10.7 That, any other relief/order which may deem fit and just in the facts and circumstances of the case including award of the costs of the petition may be given."

2. Heard Mr. Anurag Jha, learned counsel for the petitioner as well as Mr. Gagan Tiwari, learned Deputy Advocate General appearing for the State/respondents. Nos. 1, 2 and 4. Mr. Anumeh Shrivastava, learned counsel appearing for the respondent No. 3 and Mr. Arvind Dubey, learned counsel appearing for the respondent No. 5.

3. Mr. Anurag Jha, learned counsel for the petitioner submits that the petitioner is preferred against the commercialization in the marriages conducted by the respondent No. 5 in the name of Arya Samaj Act. Without any prior verification of the authentic marital status, social status or whether the couple belongs to same blood relationship the marriages are being solemnized of the candidate who pay heavy fees to the respondent No.5 and in turn they conduct marriage. The respondents No.5 has turned to be an commercial institutions rather than protecting the purpose of being "Aryan". The entire process of marriage is completed within short span of 1 hours by charging heavy fees. The purpose of marriage and the guidelines and the act has been set aside by the respondent No. 5 whereas the other respondents also certify these marriages on the basis of the certificate issued by respondent No.5. Thus the process of registration is completed on the basis of bogus certificate which is issued by the respondent No.5.

Neutral Citation 2023:CGHC:18101-DB Such action of the respondent No. 5 is causing menace in the society. Hence, this petition.

4. On the other hand, Mr. Gagan Tiwari, learned Deputy Government Advocate appearing for the State submits that the petition is not accompanied with any complaint by public in general regarding any cheating by the Arya Samaj. It is submitted that cheating has to be alleged, substantiated and established first of all which from the documents filed by the petitioner does not prima facie appear to have been done in the present case as no person who has solemnized the marriage under the Arya Samaj has come forward to state that any cheating was done while performing the marriage. No complaint or material has been produced to show that any person was compelled to perform marriage under the Arya Samaj system. Under the directions issued by the Hon'ble Supreme Court in the matter of Smt. Seema v. Ashwani Kumar in Transfer Petition No. 291/2005 and exercising the powers conferred under Entry-5 and 30 of the List III concurrent list, Seventh Schedule of the Constitution of India, the State Government has framed the rules namely

the Chhattisgarh Compulsory registration of Marriage Rules, 2006 (for short, the Rules of 2006) and the same has been published in the official gazettee on 14/09/2006. The Rules have been framed by the State Government in order to validate the marriages solemnized within the State. The marriage has been defined under Rule 2(e) of the Rules, 2006 which includes all marriage solemnized, performed or contracted between a male and a female, irrespective of the religion or caste of either party to the marriage and also includes marriages performed as per law, custom practice or any tradition of either party to the marriage and includes a remarriage also. Rule 4 of the Rules, 2004 mandates that every marriage solemnized in the State shall be registered for which a memorandum has to be submitted as specified in Schedule A within a period of 30 days from the date of marriage it is further respectfully submitted that under Rule 7 of the Rules, 2006, the marriages are being registered for which an entry has to be made in the register of marriage and the Registrar upon registration of marriage, shall issue a certificate Neutral Citation 2023:CGHC:18101-DB of the registration of marriage to the parties in the form shown in Schedule -D as per Rule 7(2) of the Rules, 2006. As per Rule 11 of the Rules, 2006, no employer or a government or semi government authority or company or public sector undertaking or local authority shall carry out any change in their office record or in any office documents, such as change in the marital status or change of nomination of its employee or in their dealing with any person, customer or client unless the employee or the applicant applying for carrying out or recording of such change, submits a certified copy of the certificate of registration of marriage granted under Rule 7 of the Rules, 2006. Thus, in the light of the above, it is submitted that the recognition of the marriage has been granted by the State Government under the Rules, 2006 and the certificates issued by the Arya Samaj or the marriage even solemnized under the traditional Hindu rites before the whole of the society rather a valid marriage certificate issued under the relevant law by a competent authority, is not being recognized by the State Government. It is further respectfully submitted that an Arya Samajee who has obtained a certificate under the Arya Samaj even they have to obtain the certificate under the Rules, 2006 for getting their marriage registered as per Rule 7 of the Rules, 2006 to avail the benefits as mentioned in Rule 11 of the Rules, 2006. Needless to mention that it is a common observation that the performing of marriage before the Arya Samaj is found to be less costlier, more convenient and not involving any pomp and show. As far as the allegation of commercialization of marriage at the Arya Samaj Centres, is concerned, the said allegation appears to be totally presumptive in nature. Actually position is other way round because the marriage in the Arya Samaj Temple being solemnized is much less formalities and requirements involving least of expenses. It requires the necessary formalities through which the marriage could be solemnized under the Arya Samaj Systems. The Arya Samaj do not charge lot of money of performing such marriages nor does this center have any facility or a compulsory condition of hosting or conducting a party after the marriage ceremony through these centres / institutions which makes it very much clear that such allegation of Neutral Citation 2023:CGHC:18101-DB commercialization of marriage appears to be thoroughly untrue. Therefore, the petition being frivolous deserves to be dismissed at the threshold.

5. Mr. Anumeh Shrivastava, learned counsel for the respondent No. 3 submits that bare perusal of the relief sought and averments raised in the memo of the Petition, would go to show that the Petitioner is raising question upon the sanctity and validity of the Marriages conducted by the Respondent No. 5/ Arya Samaj Mandir and the recognition being given by the State Authorities vide

subsequent registrations. The answering respondent at this juncture at the very outset, would submit that, for the purposes of registration of marriages it is conducted under the aegis of the Rules of 2006. As per Section 2 (c) of the Rules, the area falling under answering respondent has been defined as under Local Area, for the purposes of the rules. "Marriage" has been defined under Section 2(e) of the Rules as, including all marriages solemnized, performed or contracted between a male and a female, irrespective of the religion or caste of either party to the marriage, and also includes marriages performed as per law, custom practice or any tradition of either party to the marriage and includes a re-marriage. Rule 4 provides for Registration of Marriage. A bare perusal of the relevant clauses of the Rules of 2006 would show that the relevant rules governing the real question in controversy involved in the present petition, includes Arya Samaj Marriages, for the compulsory registrations. Hence in the light of the aforesaid submissions, the answering respondent, does allow registrations of marriages following therefrom.

6. Mr. Arvind Dubey, learned counsel for the respondent No. 5 submits that the organization Arya Samaj was founded by Swami Dayanand Saraswathi on April 10, 1875 with many objectives one being the fight against the vice of caste discrimination that still exists in the country. The prime object of Arya Samaj is to do good to the whole world, i.e. to achieve physical, spiritual and social prosperity for all. Initially Swami Dayanand Saraswathi had made 10 Rules and 28 bye-laws. One of the provision in the bye-laws prescribed that there would be one apex society and other societies would be branches of it. Accordingly Sarvadeshik Arya Neutral Citation 2023:CGHC:18101-DB Pratinidhi Sabha had been established as the Apex Body of Arya Samaj on or about 31/08/1909 for proper administration of Arya Samaj organisation in all over the world. There are 21 Prantiya Arya Pratinidhi Sabhas (Regional Bodies) affiliated to the Apex body. The General Body of Sarvadeshik Arya Pratinidhi Sabha is formed by the Delegates sent by its 21 affiliated Sabhas. The Executive Body is elected by these Delegates in General. Body Meeting held tri-annually. There is Chhattisgarh Prantiya Arya Pratinidhi Sabhas which is a registered society and also affiliated with apex body and overall in charge of Arya Samaj Mandir in Chhattisgarh. The Regional body also grants affiliation to the Arya Samaj Temple/society within the region. The respondent no. 5 is affiliated with the Regional Body i.e. Chhattisgarh Prantiya Arya Pratinidhi Sabhas. The prime object of Arya Samaj is to do good to the whole world, L.e. to achieve physical, spiritual and social prosperity for all. One of the main missions of the Arya Samaj has been education. Arya Samaj is one of the largest providers of education in India, from pre-school to graduate level. Arya Samaj especially emphasizes the education of women. As Indians moved away from the borders of India to settle in other lands, several carried with them the principles of Arya Samaj. They established branches of Arya Samaj in their adopted countries in order to continue the good work, to educate their offspring about the rich history, cultural heritage and traditions of India, and to inspire them to carry on the beliefs and practices of Arya Samaj. The Arya Marriage Validation Act, 1937 is a legislation enacted by the British Government in India during the pre-independence era to recognize inter marriages among Arya Samajis. Marriages took place between the Arya Samajis irrespective of the fact that prior to the marriage both the bride and bridegroom belonged to different caste or sub castes other than Hindu. The provisions of the aforesaid Act had been made continue by issuance of the order of adaptation as provided under Article 372 of the Constitution of India. As such they feared that these marriages could be declared invalid solely on the point that the parties before the marriage belonged to different castes between whom marriage was not permissible as per Neutral Citation

2023:CGHC:18101-DB the custom prevailing at that time. In order to address such an issue the Select Committee proposed a legislation which was enacted in order to validate all such marriages and recognize the marriage between two Arya Samajis as valid. The petitioner has filed the present writ petition as public interest litigation as he got infuriated with the respondent No. 5 as his daughter namely Bhumika Sonkar has solemnized marriage with one Rupesh Sonkar on 05/01/2018 by the respondent no. 5. The petitioner had asked for information from the respondent no. 5 vide his letter dated 27/03/2018, which was duly provided to him by the answering respondent vide letter dated 08/04/2018. It is clear that the present writ petition has been filed with a personal interest of the petitioner in a vindictive manner. The petitioner did not disclose the aforesaid facts before this Hon'ble Court. The present writ petition is liable to be dismissed on this ground alone. The petitioner in the entire writ petition has made balled allegations without support of any such documents or incidents. Thus, the present writ petition is not maintainable and liable to be rejected.

7. We have heard learned counsel for the parties, perused the pleadings and documents appended thereto.

8. The petitioner claims himself to be a public spirited person and an RTI activist working in the field of social education and he is a farmer. The main grievance of the petitioner appears to be is that under in the marriages performed by the Arya Samaj Temple, no proper enquiry is being made with respect to the bride and the groom and whosoever is paying the fees for the marriage, their marriages are being performed which later on turns to be a blunder as it has severe repercussions on the lives of the couple. Further, from perusal of the return filed by the respondent No. 5, it is evident that the petitioner is infuriated by the fact that her own daughter has solemnized marriage with one Rupesh Sonkar on 05/01/2018 performed by the respondent no. 5 which has not been disclosed by the petitioner in this petition. It is the duty of the petitioner to come before this Court with clean hands and to disclose his credentials first.

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9. It is relevant to mention that it is the duty of this Court to ensure that there is no personal gain, private or oblique motive behind filing of PIL. In order to preserve the purity and sanctity of the PIL, the Courts must encourage genuine and bonafide PIL and effectively discourage and curb the PIL filed for extraneous considerations. The Courts should, prima facie, verify the credentials of the petitioner before entertaining a PIL. It is also well settled that the Courts before entertaining the PIL should ensure that the PIL is aimed at redressal of genuine public harm or public injury. The Courts should also ensure that the jurisdiction in public interest is invoked for genuine purposes by persons who have bona fide credentials and who do not seek to espouse or pursue any extraneous object. Otherwise, the jurisdiction in public interest can become a source of misuse by private persons seeking to pursue their own vested interests.

9. Except for stating that the petitioner is a public spirited person, nothing further has been stated about the credentials of the petitioner. The return filed by the State as well as private respondents is self-explanatory. The present petition is bogus and bereft of any ground as there is no element of public interest involved in this petition and nothing has been disclosed as to which rights of the

public at large is being affected. The petition also lacks proper pleadings and is sketchy as no instance of any fraud has been disclosed.

10. In view of the above, this petition being devoid of merit, is dismissed.

Sd/-
(Rajani Dubey)
JUDGE

Sd/-
(Ramesh Sinha)
CHIEF JUSTICE

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